

25TRCV01276 25TRCV01276

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Case Number: 25TRCV01276 Hearing Date: July 15, 2026 Dept: B

Hearing

Date: July 15,

2026

Moving Parties: Plaintiff Belen Cantoran

Responding

Party: Defendants Ruben Garcia Salas and Maria Garcia

(1)

Motion to Compel Further Responses

to Form Interrogatories, Set One

(2)

Motion to Compel Further Responses

to Special Interrogatories, Set One

The Court considered the moving, opposition, and reply papers.

RULING

The

motions are MOOT. See order below.

BACKGROUND

On April

22, 2025, plaintiff Belen Cantoran filed a complaint against Ruben Garcia Salas

and Maria Garcia for Volkswagen Group of America, Inc. for (1) breach of contract, (2) breach of the covenant of quiet enjoyment, (3) breach of the implied warranty of habitability, (4) nuisance, (5) negligence, (6) IIED, (7) violation of Bus. and Prof. Code §17200, and (8) retaliation under Civil Code §1942.5.

Trial

is scheduled for February 1, 2027.

LEGAL

AUTHORITY

45-Day

Rule: This motion must be served within 45 days after service of the response in question (extended if served by mail, overnight delivery, or fax; see CCP §1013); otherwise, the demanding party waives the right to compel any further response to the CCP §2031.010 demand. CCP §§2031.310(c), 2016.050; see *Sperber v. Robinson* (1994) 26 Cal.

App. 4th 736, 745. The 45-day time limit is mandatory and jurisdictional. *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410. The parties, however, can also agree in writing on a specific later date by which to file the motion to compel. CCP §2031.310(c).

Meet-and-Confer

Requirement: The motion to compel further responses must be accompanied by a declaration showing “a reasonable and good faith attempt” to resolve the issues outside of court (so-called “meet and confer”). CCP §§2016.040, 2031.310(b)(2).

Separate

Statement: Any motion involving the content of a discovery request or the responses to such a request shall be accompanied by a separate statement. This includes a motion to compel further responses to demand for inspection of documents or tangible things. CRC Rule 3.1020(a)(3).

Interrogatories

CCP

§2030.300 states: "(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. . . . (3) An objection to an interrogatory is without merit or too general.

(b) A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040. (c) Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories. . . ."

CCP

§2030.220 states: "(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party."

CCP §2030.230 states: "If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. . . ."

CCP §2030.010(b) provides: "An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on

information obtained or legal theories developed in anticipation of litigation or in preparation for

trial.”

DISCUSSION

Plaintiff

Belen Cantoran requests that the Court compel defendants Ruben Garcia Salas and Maria Garcia to provide further responses to Form Interrogatories, Set One, Nos. 12.4, 15.1, and 17.1 and Special Interrogatories, Set One, Nos. 38, 40, 41, 46, and 93-107.

The

complaint alleges that defendants are the owners and property managers of the property located at 3323 W. 135th Street, Hawthorne. Complaint, ¶¶5-7. Plaintiff lived at the property for approximately thirteen years. Id., ¶13. Plaintiff entered into a written lease agreement with defendants. Id., ¶14. Defendants failed to maintain the unit in a habitable condition. Id., ¶15. Defendants collected rent throughout the duration of plaintiff’s tenancy without providing a habitable condition. Id., ¶18. The defects/violations include cracked ceiling, cockroach infestation, presence of mold, pest problems, broken and defective door handle, inoperable heater, water leaks throughout, plumbing issues, broken windows, inoperable smoke detectors, damaged and worn out kitchen sink, absence of range hood over the stove, faulty and hazardous shower sliding door, worn out and broken bathroom cabinets, cracked bathtub, defective pantry doors, old and inoperable shower faucet, inoperable and clogged toilet, peeling paint throughout, old and dirty carpets, water leaks through the chimney, malfunctioning drawers, bathroom cabinets lack proper support and are falling apart, and defective and improperly functioning doors, including entrance door. Id., ¶22. Despite plaintiff’s consistent reports regarding various defect in the unit, defendants failed to take any corrective action. Id., ¶23.

Plaintiff

asserts that on October 17, 2025, plaintiff served defendants with form and special interrogatories. Defendants requested and plaintiff granted an extension and defendants served responses on November 24, 2025. On December 17, plaintiff’s counsel sent a detailed meet and confer letter to defense counsel outlining “specific deficiencies” in each response and demanding full

supplemental verified responses by December 25.

On December 22, defense counsel requested an extension to January 10, 2026, which plaintiff granted. On

January 9, defense counsel requested an extension to January 29, which was granted. On January 27, defense counsel

requested an extension to February 9, which was granted. On February 13, defense counsel requested an extension to February 27, which was granted.

On February 26, defense counsel requested an extension to March 13, which plaintiff's counsel granted with notice that no further extensions would be granted. On March 12, defense counsel

requested an extension to March 23, which plaintiff's counsel denied. As of the filing of the motions, plaintiff's counsel had not received supplemental responses.

In the

opposition, defendants contend that their original responses were substantially justified and code-compliant but that they served verified supplemental responses on June 30 and that there is nothing left to compel.

In

reply, plaintiff acknowledges that supplemental responses were served but argue that they "remain conditional, continue to rely on the same boilerplate objections, and still fail to answer several interrogatories as propounded."

The

Court rules as follows: As to the motion

compelling further form interrogatories, plaintiff does not appear to note any deficiencies as to the supplemental responses.

Although defendants asserted objections, they also provided substantive responses.

As to

the supplemental responses to special interrogatories, plaintiff asserts that

No. 40 still evades the question whether the ceiling "failed." The Court finds that the supplemental response is sufficient as the interrogatory used the word "collapsed," which defendants dispute. As to No. 46, the

supplemental response identified specific Bates ranges concerning the public health complaint and repair response, which is sufficient. As to Nos. 93-107, in their original responses, defendants contend that they identified the produced documents

supporting their affirmative defenses as permitted by CCP §2030.230. This section states: "If the answer to an interrogatory would

necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall then afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them.” Their responses refer to Bates nos. 0001-0118 as to each interrogatory. It does not appear that defendants’ answers necessitated reference to documents only and the Bates range was not “in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained.” In any event, in their supplemental responses, defendants provided facts, which are sufficient.

The motions are thus MOOT.

Sanctions

Plaintiff

requests sanctions in the amounts of \$2300 (as to form interrogatories) and \$2587.50 (as to special interrogatories) at \$575/hr. against defendants and their counsel. The Court finds that sanctions are warranted and defendants have not shown substantial justification. The Court finds that \$3450 (\$575/hr. x 6 hrs.) is a reasonable amount to be imposed against defendants and their attorney of record, Lida Ter-Khachatryan of Phillips, Spallas & Angstadt LLP, jointly and severally, in total for both motions.

ORDER

The motions are MOOT.

Defendants Ruben Garcia Salas and Maria Garcia and defendants’ attorney of record, Lida Ter-Khachatryan of Phillips, Spallas &

Angstadt LLP, jointly and severally, are ordered to pay sanctions to plaintiff in the amount of \$3450, in total for both motions, within thirty days.

Plaintiff is to give notice of ruling.